

THOMAS, J., concurring

derives its whole consequence merely from being the giver of places and pensions”). In fact, one of the grievances raised by the American colonists in declaring their independence was that the King “ha[d] erected a multitude of New Offices, and sent hither swarms of Officers to harass our people, and eat out their substance.” Declaration of Independence ¶12. The Founders thus drafted the Constitution with “evidently a great inferiority in the power of the President, in this particular, to that of the British king.” The Federalist No. 69, at 421.

The Founders broke from the monarchical model by giving the President the power to *fill* offices (with the Senate’s approval), but not the power to *create* offices. They did so by “imposing the constitutional requirement that new officer positions be ‘established by Law’ rather than through a King-like custom of the head magistrate unilaterally creating new offices.” Mascott 492–493 (footnote omitted); see also 1 Annals of Cong. 581–582 (1789) (“The powers relative to offices are partly Legislative and partly Executive. The Legislature creates the office, defines the powers, limits its duration, and annexes a compensation”); see also *ibid.* (describing the power to “designat[e] the man to fill the office” as “of an Executive nature”). The Constitution thus “giv[es] Congress broad authority to establish and organize the Executive Branch.” *Seila Law LLC v. Consumer Financial Protection Bureau*, 591 U.S. 197, 266 (2020) (KAGAN, J., concurring in judgment in part and dissenting in part). By keeping the ability to create offices out of the President’s hands, the Founders ensured that no President could unilaterally create an army of officer positions to then fill with his supporters. Instead, our Constitution leaves it in the hands of the people’s elected representatives to determine whether new executive offices should exist.

Longstanding practice from the founding to today comports with this original understanding that Congress must create offices by law. The First Congress, for instance, rou-